



U.S. Department
of Transportation

Research and
Special Programs
Administration

DOT-E 11457
(FIRST REVISION)

DEC 22 1997

400 Seventh Street, S.W.
Washington, D.C. 20590

EXPIRATION DATE: November 30, 1999

(FOR RENEWAL, SEE 49 CFR SECTION 107.109)

1. **GRANTEE:** Entergy Service, Incorporated
Beaumont, Texas
2. **PURPOSE AND LIMITATION:** This exemption authorizes tank cars, containing hazardous materials identified in paragraph 6, to remain standing with unloading connections attached when no product is being transferred, provided that a minimal level of monitoring, as specified in this exemption is maintained, and provides no relief from any regulations other than as specifically stated.
3. **REGULATORY SYSTEM AFFECTED:** 49 CFR Parts 106, 107 AND 171-180.
4. **REGULATIONS FROM WHICH EXEMPTED:** 49 CFR 174.67 (i) and (j).
5. **BASIS.** This exemption is based on Entergy Services, Incorporated's application of October 28, 1997, submitted in accordance with 49 CFR 107.109.
6. **HAZARDOUS MATERIALS (49 CFR 172.101):**

Hazardous materials description/proper shipping name	Hazard Class/Division	Identification number	Packing Group
Chlorine	2.3	UN1017	N/A

7. **PACKAGING(S) and SAFETY CONTROL MEASURES:**
 - a. Packagings prescribed are DOT specification tank cars authorized for the material specified.
 - b. Any manually operated switch, under the proprietary control of the exemption holder, providing access to the track on which the equipment is located must be lined against movement to that track and locked with an effective locking device operable only by a representative of the facility.

- c. The facility operator shall install a bi-directional derail in an effective location (at least 50 feet when possible) from the end of the equipment to be protected by the caution sign. The person performing the unloading operation shall lock the device in the derailing position with an effective locking device operable only by a representative of the facility.
- d. The facility operator shall designate an employee responsible for on-site monitoring of the transfer facility in the absence of the unloader. The designated employee must be made familiar with the nature and properties of the product contained in the tank car, procedures to be followed in the event of an emergency; and, in the event of an emergency, have the ability and authority to take responsive actions.
- e. When a signalling system is used (including a monitoring system or a sensing device), the system must be capable of alerting the designated employee in the event of an emergency and providing immediate notification of any monitoring system malfunction. If the monitoring system does not have self-monitoring capability, the designated employee shall check the monitoring system hourly for proper operation. (For recommendations on the selection, installation and maintenance of signalling systems see NFPA 72 - Installation, Maintenance and Use of Protective Signalling Systems.)
- f. In the absence of the unloader:
- (i) the tank car and facility shutoff valves must be secured in the closed position;
 - (ii) no product may be transferred; and
 - (iii) the requirements of 49 CFR 174.67(a)(2) and (3) apply.
- g. The transfer facility shutoff valve shall be located as close as practicable to the point of connection between the transfer system and the tank car and in a manner that will minimize the release of product in the event of hose rupture or separation. The facility operator must take appropriate steps to prevent rupture of transfer hoses due to product expansion (i.e. liquid expansion chambers or hoses with an increased minimum burst pressure rating.)

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12. **REPORTING REQUIREMENTS.** The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.)

Issued at Washington, D.C.:

per Alan I. Roberts

Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

12/22/97

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety,
Research and Special Programs Administration, Department of Transportation,
Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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